

25NWCV01738 25NWCV01738

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Case Number: 25NWCV01738 Hearing Date: September 4, 2026 Dept: P

OSNEYDA LICET DUARTE v. EKT NURSERY, ET AL.

CASE NO.: 25NWCV01738

HEARING: 09/04/2026 @ 9:30 AM

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TENTATIVE ORDER

I.

Defendant Tu Vu's motions to compel responses to form interrogatories, set one; form interrogatories – employment, set one; special interrogatories, set one; and requests for production of documents, set one are GRANTED.

II.

Defendant's request for monetary sanctions against Plaintiff is GRANTED in the total amount of \$1,840.

III.

Defendant is ORDERED to pay a \$60 filing fee.

Moving party to give notice.

Defendant Tu Vu dba EKT Nursery (Defendant) moves to compel Plaintiff Osneyda Licet Duarte (Plaintiff) to provide responses to (1) form

interrogatories (FROGs), set one; (2) FROGs – employment law, set one; (3) special interrogatories (SROGs), set one; and (4) requests for production (RPDs), set one.

Background

On May 13, 2025, Plaintiff filed this action against EKT Nursery, Ernesto Ordonez, and Does 1 through 50. The complaint alleges that during Plaintiff's employment with Defendants from June to August of 2024, Plaintiff was sexually harassed by her direct manager, Defendant Ordonez. (Complaint, ¶¶ 14-16.) The complaint asserts twelve causes of action including violations of the Labor Code, IWC Wage Orders, hostile work environment sexual harassment, and wrongful constructive discharge in violation of public policy.

On October 27, 2025, default was entered as to Defendant Ordonez.

On April 17, 2026, the Court granted Plaintiff's counsel's motion to be relieved as counsel.

Legal Standard

Interrogatories

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) Additionally, "the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290.)

Requests for Production

Under Code of Civil Procedure section 2031.260 subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd.

(a.)

Improper Omnibus Motion

The Court initially notes that Defendant's motion to compel responses to FROGs, set one, and FROGs – employment, set one should have been filed as two separate motions, as it involves two separate discovery requests. Multiple motions should not be combined into a single filing, as each motion requires a separate filing fee. (See Gov. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460 [finding filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them].)

Defendant is thus ordered to pay an additional \$60.00 filing fee.

Discussion

Defendant moves to compel Plaintiff to provide responses to sets one of FROGs, FROGs – employment, SROGs, and RPDs. These motions are unopposed.

Defendant explains that on February 18, 2026, Defendant served the subject discovery on Plaintiff's former counsel, making responses due by March 24, 2026. (Vu Decls., ¶¶ 2-4.) Plaintiff did not serve responses by that deadline, and Defendant extended the deadline to April 20, 2026. (Vu Decls., ¶¶ 5-6.) After Plaintiff's counsel was relieved, upon the Court's instruction, Defendant directly contacted Plaintiff regarding the outstanding discovery, sent the subject discovery by priority mail to Plaintiff, and requested responses by July 30, 2026. (Vu Decls., ¶¶ 7-9.) Defendant was not able to reach Plaintiff through her last known telephone number. (Vu Decls., ¶ 10.) As of the date Defendant filed the motions, Plaintiff had not provided any discovery responses. (Vu Decls., ¶ 13.)

Here, Defendant establishes that it properly served Plaintiff with the subject discovery and granted extensions after Plaintiff's counsel was relieved yet has not received any responses.

Accordingly, Defendant's motion to compel discovery

responses to FROGs, set one; FROGs – employment, set one; SROGs, set one; and RPDs, set one are GRANTED.

Plaintiff is ORDERED to provide verified responses, without objections, to form interrogatories, set one; form interrogatories – employment, set one; special interrogatories, set one; and requests for production of documents, set one, within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

The Order as to form interrogatories, set one, will take effect upon Defendant's payment of the motion fee.

Sanctions

Defendant requests the Court impose monetary sanctions against Plaintiff for the failure to respond to the discovery requests.

Pursuant to Code of Civil Procedure sections 2030.290, subdivision (c) and 2031.300, subdivision (c) “[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or demand for production], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

The Court finds monetary sanctions warranted against Plaintiff for failing to respond to the subject discovery without substantial justification. Defendant requests \$3,580 in monetary sanctions for each motion reflecting defense counsel's hourly rate of \$400, 0.5 hours reviewing discovery history, 1.5 hours reviewing discovery requests, 2 hours drafting each motion, 1.75 hours reviewing oppositions and replying, three hours for the hearing, and \$60 in filing fees per motion. (Vu Decl., ¶ 15.) The Court finds this amount unreasonably excessive given the simplicity of each motion, the excessive time reviewing the discovery history which is the same for each motion, the fact that these are unopposed, and the fact that each motion will be heard concurrently. Based on counsel's experience and the simplicity of this motion, the Court grants 1 hour to prepare each motion, 1 total hour for appearing at the hearings, and \$240 in filing fees.

Accordingly, Defendant's request for monetary sanctions

against Plaintiff is GRANTED in the total amount of \$1,840 for all three motions.

Plaintiff is ORDERED to pay this amount within 30 days of this Order. This date may be extended pursuant to agreement between the parties.